

25STCV09339 25STCV09339

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV09339 Hearing Date: July 30, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

LUIS

RIVERA,

Plaintiff,

vs.

NISSAN

NORTH AMERICA, INC., et al.

Defendants

Case No.:

25STCV09339

Hearing

Date:

July 30, 2026

ORDER

DEEMING MOTION TO COMPEL COMPLIANCE

WITH SECTION 871.26 MOOT.

I. BACKGROUND

Plaintiff Luis Rivera ("Rivera")

entered into a warranty contract with Defendant Nissan North America, Inc. ("Nissan")

regarding a 2020 Nissan Frontier ("subject vehicle"). The subject vehicle allegedly

has defects and nonconformities making the car effectively worthless. Nissan allegedly

failed to replace the vehicle or reimburse Rivera. Rivera sued Nissan for five

causes of action, including violation of the Song-Beverly act.

On

April 8, 2026, Rivera filed the instant motion to compel compliance with Code

of Civil Procedure section 871.26, subdivisions (b) and (h).[1]

Nissan filed an opposition.

II. REQUEST FOR JUDICIAL NOTICE

Nissan requests that the Court take judicial

notice of certain documents. The Court grants the requests, taking judicial

notice of all requested documents.

III. LEGAL STANDARD

Effective January 1, 2025, in any action

seeking restitution or replacement of a motor vehicle under § 871.20, the

parties must follow these rules: within 120 days after an answer or other

responsive pleading is filed, each party shall, without awaiting a discovery

request, provide 1) a copy or access to an owner's manual for the subject

vehicle; 2) any warranties issued in conjunction with the sale of the motor

vehicle; 3) sample brochures published for the motor vehicle; 4) the motor

vehicle's original invoice to the selling dealer, 5) sales or lease agreements;

6) motor vehicle information reports; 7) entire warranty transaction history

for the motor vehicle; 8) a listing of required field actions applicable to the

motor vehicle; 9) published technical service bulletins ("TSBs") for the same

make, model, and year reasonably related to the nonconformities pertaining to

the motor vehicle; 10) published information service bulletins ("ISBs") for the

same make, model, and year reasonably related to the nonconformities pertaining

to the motor vehicle; 11) records relating to communications between the

manufacturer or dealership and the owner or lessee of the motor vehicle,

including those related to repair orders or claims involving the motor vehicle;

12) warranty policies and procedure manuals; 13) service manuals reasonably

related to the nonconformities pertaining to the motor vehicle; 14) if a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint; 15) if a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims; 16) if a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation; 17) any warranty extensions or modifications issued by the manufacturer on the motor vehicle. (§ 871.26, subdivision (h)(1)–(17).)

The California Legislature

enacted section 871.20, et seq., which added requirements for certain lemon law actions. (Code Civ. Proc. § 871.20, subd. (a) ["Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty"]; subd. (b) ["This chapter does not apply to

service contract claims under Section 1794 of the Civil Code or any action

seeking remedies that are not restitution or replacement of a motor

vehicle”].)

IV. DISCUSSION

A. Compel Mandatory Disclosures

Rivera

requests the Court compel Nissan to produce all documents required under

section 871.26, subdivision (h), as Nissan failed to provide any verified

written responses or documents required under statute. Pursuant to section

871.26, subdivision (b) and (h), certain documentation must be provided within

60 days of filing a responsive pleading in a lemon law action such as this case.

Nissan

filed an answer on August 8, 2025. Therefore, the required documents should

have been produced by October 7, 2025. No responses were provided by that time.

On December 22, 2025, Rivera's counsel e-mailed Nissan to request documents for

463 separate cases in which Nissan's initial disclosures were past due. (Mot.,

Shahian Decl. ¶ 6, Ex. 1.) Nissan requested parties agree for Nissan to produce

disclosure for 50 cases per month. (Ibid.) It is unclear if parties

agreed to this, and, if so, when Rivera's disclosures would be due. As of the

filing of this motion on April 3, 2026, Nissan has still failed to provide any

of the required documents. (Mot., Shahian Decl., ¶ 5.)

On

April 24, 2026, Nissan served initial disclosures and document production as required by section 871.26, subdivision (h). (Opp., Sweeney Decl. ¶¶ 10-12, Ex.

A-B.) As disclosures have been produced, this motion is MOOT.

B. Sanctions

Rivera requests the Court impose sanctions of \$2,500.00 against

Nissan's counsel, pursuant to section 871.26, subdivision (j)(2). Section

871.26, subdivision (j)(2), provides unless the party failing to comply shows

good cause, the court shall impose \$2,500.00 in sanctions upon defendant's

counsel for failure to comply with deposition requirements.

Nissan claims it had good cause to fail to abide by the

statutory requirements as parties mutually agreed to pause disclosure

obligations while they engaged in active settlement negotiations. However, Nissan

provides no evidence to demonstrate parties agreed to suspend obligations while

pursuing settlement. In sole support of this assertion, Nissan cites to

"Exhibit 1 to Plaintiff's Declaration pp. 3-5." (Opp., Sweeney Decl. ¶ 6.)

There is no submitted declaration attributed to the plaintiff, Rivera. The

Court assumes Nissan refers to Rivera's only submitted declaration, the

Declaration of Payam Shahian. Shahian's declaration does not discuss settlement

in any capacity. The attached Exhibit 1 is an e-mail chain between Rivera's counsel and Nissan's counsel, requesting timely overdue disclosures. (Mot., Shahian Decl. ¶ 6, Ex. 1.) Nissan's counsel, in return, requested to serve disclosure for 50 cases per month. (Ibid.) There is no discussion of settlement or even discussion of Nissan's counsel's proposal. There is also no evidence counsel otherwise replied to Nissan's request. Additionally, the Court notes, these e-mails are dated to December 2025, two months after initial disclosures were due. (Ibid.) Any agreement made at that point would not account for the already overdue responses.

Nissan also cites to multiple other court orders in other lemon law cases by Rivera's counsel against Nissan, in which those judges denied both the motion and the request for sanctions. (Opp., Sweeney Decl. ¶¶ 14-22, Ex. C-J.) The Court notes some of the applicable minute orders for these cases do not provide information as to why sanctions were denied, while other note the motions were taken off calendar. While multiple of these cases opted not to impose sanctions due to informal resolution efforts, Nissan has provided no evidence in this case to support any indication resolution efforts were ongoing in this case or included an agreement to suspend discovery. Therefore, the Court does not find there is evidence Nissan acted in good faith.

Accordingly, the Court imposes sanctions.

V. CONCLUSION

Plaintiff Jose Rivera Rivera's

motion to compel compliance with

section 871.26 is MOOT.

Plaintiff Luis Rivera's request for sanctions

is GRANTED. Nissan's counsel is ordered to pay Rivera \$2,500.00 in sanctions

within 15 business days.

Plaintiff is ordered to give notice.

DATED:

July 30, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer

after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this

tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by

the case number. The body of the email must include the hearing date and time,

counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.